

STEVENS, J., concurring in judgment

Second, as the Presidential campaigns conducted by Strom Thurmond in 1948 and by George Wallace in 1968, and the Senate campaigns conducted more recently by Jesse Helms, have demonstrated, a great many registered Democrats in the South do not always vote for Democratic candidates in federal elections. The Congressional Quarterly recently recorded the fact that in North Carolina “Democratic voter registration edges . . . no longer translat[e] into success in statewide or national races. In recent years, conservative white Democrats have gravitated toward Republican candidates.” See Congressional Quarterly Inc., *Congressional Districts in the 1990s*, p. 549 (1993).² This voting pattern

scrutiny, a plaintiff must show that the State has relied on race in substantial disregard of customary and traditional districting practices”). In this regard, I note that neither the Court’s opinion nor the District Court’s opinion analyzes the question whether the “traditional districting principle” of joining communities of interest is subordinated in the present Twelfth District. A district may lack compactness or contiguity—due, for example, to geographic or demographic reasons—yet still serve the traditional districting goal of joining communities of interest.

²The Congressional Quarterly’s publication, which is largely seen as the authoritative source regarding the political and demographic makeup of the congressional districts resulting from each decennial census, is even more revealing when one examines its district-by-district analysis of North Carolina’s partisan voting patterns. With regard to the original First District, which was just over 50 percent black, the book remarks: “The white voters of the 1st claim the Democratic roots of their forefathers, but often support GOP candidates at the state and national level. A fair number are ‘Jessecrats,’ conservative Democratic supporters of GOP Sen. Jesse Helms.” Congressional Quarterly, at 550. The book shows that while the Second and Third Districts have “significant Democratic voter registration edges,” Republican candidates actually won substantial victories in four of five recent elections. See *id.*, at 549, 552–553. Statistics also demonstrate that a majority of voters in the Eleventh District consistently vote for Republicans “despite a wide Democratic registration advantage.” *Id.*, at 565. Although the book exhaustively analyzes the statistical demographics of each congressional district, listing even the number of cable television subscribers in each district, it does not provide voter registration statistics.